

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X **SUMMONS**

KEISHA NEIL,

Plaintiff,

Plaintiff designates Queens
County as the place of trial.

- against -

DETECTIVE TROY BLAKE, DETECTIVE OSVELIA
SALAS, SERGEANT MICHAEL SULLIVAN,

The basis of venue is:
The county in which the
action arose per CPLR 504(3)

Defendants.

The cause of action arose in
Queens County and is
against the City of New
York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
January 03, 2021

DEFENDANTS' ADDRESS:

Detective Troy Blake
One Police Plaza, New York, NY
10038

Detective Osvelia Salas
One Police Plaza, New York, NY
10038

Sergeant Michael Sullivan
One Police Plaza, New York, NY
10038

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
14 Wall St, Ste 1603
New York, NY 10005

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF QUEENS

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Index No.:

KEISHA NEIL,

Plaintiff,

- against -

VERIFIED COMPLAINTDETECTIVE TROY BLAKE, DETECTIVE OSVELIA SALAS,
SERGEANT MICHAEL SULLIVAN,

Defendants.

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Plaintiff, KEISHA NEIL, by his attorneys. LORD LAW GROUP PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff KEISHA NEIL brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

3. That at all times hereinafter mentioned, the DETECTIVE TROY BLAKE, DETECTIVE OSVELIA SALAS, SERGEANT MICHAEL SULLIVAN were employees of the New York Police Department, acting in their capacity as a police officers, and under color

of law.

4. That all acts and incidents complained of herein occurred in Queens County, and State of New York.

5. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

6. On January 19, 2019, at 146-92 Guy R. Brewer Boulevard, the NYPD, led by Detective Blake, Detective Salas, and supervised by Sergeant Sullivan, executed a search warrant at 52 Reasons ("Establishment").

7. This search warrant was based upon an investigation that took place over a year by multiple undercover officers and the Major Case Squad.

8. Over this year long investigation, the NYPD gave thousands of dollars to this establishment in the form of payment to enter the Establishment, payment for alcoholic drinks for themselves and other women, and payment for dances from women.

9. During the course of this year long investigation, the Undercover Officers interacted with dozens of employees and independent contractors at the Establishment.

10. One such employee that they interacted with was Keisha Neil, who had been working at the Establishment for approximately three weeks prior to the execution of the Search Warrant.

11. She worked as a bartender at the Establishment.

12. When the Search warrant was executed, the Officers searched through a sealed bookbag that was behind the bar.

13. No Officers, during the yearlong investigation, saw Ms. Neil access this bag that was at the same place every night.

14. Upon information and belief, the Undercover officers observed the owner of the Establishment, Kenyatte Thomas remove bills from that bag in order to provide change.

15. Moreover, video was recovered by the NYPD indicating that Kenyatte Thomas entered the Establishment with the bag.

16. After this bag was searched, an armed weapon was recovered.

17, Ms. Neil was placed under arrest and released upon her own recognizance after a day in custody.

18. Upon information and belief, the Complaint was Dismissed by the Grand Jury on July 25, 2019. All charges were dismissed in the interest/furtherance of justice on August 08, 2019.

19. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the New York Police Department, its agents, servants and/or employees.

20. The charges of Penal Law 265.03, and 265.01-b, ABC 096, ABC 064-B were dismissed on August 08, 2019.

21. Plaintiff was illegally was stopped, arrested and imprisoned by agents and/or employees of the New York Police Department.

22. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

23. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER U.S.C. § 1983**

24. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

25. Plaintiff was arrested in the absence of probable cause, at the direction of, Defendants Blake, Salas, and Sullivan.

26. As a result of the aforesaid conduct by DEFENDANTS, Plaintiff was subjected to illegal, improper and false arrest by the DEFENDANTS and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

27. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights,

emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

28. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER U.S.C. § 1983**

29. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

30. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

31. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

32. DEFENDANTS commenced this criminal action out of malice.

33. The criminal action against Plaintiff has terminated in her favor.

34. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

35. That Plaintiff was conscious of the confinement.

36. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity

and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

37. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

38. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

39. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**THIRD CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE
PROCESS OF LAW UNDER 42 U.S.C. § 1983**

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

41. That DEFENDANTS falsely stated under penalty of perjury, and then forward this information to the Queens County District Attorney's Office("WCDA"), information made to give the misleading and false impression that the arrest and detainment of Plaintiff was legally justified.

42. That the aforementioned statements by the DEFENDANT, and actions by the DEFENDANT, consisted of fabricated and falsified information was utilized and relied upon by the Queens County District Attorney's Office.

43. Furthermore, DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

44. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

45. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF YONKERS, at the aforesaid location.

46. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**FOURTH CAUSE OF ACTION:
FAILURE TO INTERVENE**

47. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

48. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

49. As a direct and proximate result of this unlawful conduct, plaintiff sustained the

DAMAGES

50. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

51. This action seeks damages from on or prior to January 20, 2019 through the present.

52. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be maliciously prosecuted, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

53. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of property, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation .

54. Such acts and omissions of DEFENDANTS entitle Plaintiff to
compensatory and punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of
the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the
claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court November deem appropriate and
equitable.

Dated: New York, New York
January 03, 2021

Yours, etc.

LORD LAW GROUP PLLC

A handwritten signature in blue ink, appearing to read 'Masai I. Lord', is written over the printed name.

Masai I. Lord
Attorneys for Plaintiff
KEISHA NEIL
14 Wall St., Ste 1603
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD LAW GROUP PLLC, attorneys of record for Plaintiff KEISHA NEIL. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
January 03, 2021



MASAI I. LORD
Counsel for Plaintiff